

ASCII MASTER FLOW – PANEL 1/12: Statutory origin and the section 2 human-rights field

PROTECTION OF HUMAN RIGHTS ACT, 1993

deemed commencement 28 September 1993 | presidential assent 8 January 1994.

Amendments in 2006 and 2019 reshape design; commissions remain statutory.

SECTION 2(d)

rights relating to life, liberty, equality and dignity

-> guaranteed by Constitution or embodied in defined International Covenants

-> enforceable by courts in India.

SECTION 2(f)

ICCPR + ICESCR + notified UN General Assembly covenant or convention.

INSTITUTIONAL MAP

NHRC at Union level | SHRCs at State level | Human Rights Courts as trial route.

LIMIT

human-rights importance does not convert NHRC or SHRC into a constitutional court.

ASCII MASTER FLOW – PANEL 2/12: NHRC composition and deemed-member boundary

~~NHRC: Chairperson + Five ordinary members under section 3(2)~~

Chair: person who has been CJI or Supreme Court Judge.

Judicial routes: Supreme Court Judge + High Court Chief Justice.

Three experts; at least one woman.

SEVEN DEEMED MEMBERS

NCBC | NCM | NCPCR | NCSC | NCST | NCW | Chief Commissioner PwD.

They participate for section 12(b)-(j), not section 12(a) complaint inquiry.

TRAP

'deemed member' is not a merger of specialised commissions.

ASCII MASTER FLOW – PANEL 3/12: NHRC appointment, tenure and removal

APPOINTMENT

Six-member committee recommends -> President appoints by warrant.

Sitting judicial appointee requires consultation with CJI.

TENURE

three years; age ceiling 70; reappointment permitted; post-office government employment barred.

REMOVAL

proved misbehaviour/incapacity: President reference -> Supreme Court inquiry/report -> removal.

Separate direct statutory grounds remain distinct.

LIMIT

committee vacancy does not by itself invalidate appointment, but judicial review remains.

ASCII MASTER FLOW – PANEL 4/12: SHRC design and the federal jurisdiction line

SHRC MAY be constituted by State Government.

Chair: person who has been High Court Chief Justice or Judge.

One judicial member + one human-rights expert.

Governor appoints after State committee recommendation; President removes under the Act.

JURISDICTION

State List + Concurrent List matters.

No duplicate inquiry where NHRC or another commission is seized.

Section 29 adapts section 12 and omits treaty-study clause 12(f).

TRAP

appointment by Governor does not mean removal by Governor.

ASCII MASTER FLOW – PANEL 5/12: Section 12 functions and section 13 evidence powers

SECTION 12 FUNCTIONS

suo motu or petition inquiry | court intervention with approval
| institution visits | review constitutional/legal safeguards
| review factors inhibiting rights | study treaties
| research | literacy | NGO encouragement | other necessary functions.

SECTION 13 INQUIRY POWERS

summon and examine on oath | documents | affidavits
| public records | commissions | specified additional powers.

SECTION 14 INVESTIGATION

Commission may use Central or State government agency or officers with consent.

PROCEDURAL FAIRNESS

notice and hearing where reputation or conduct may be prejudicially affected.

LIMIT

civil-court evidence powers support inquiry;
they do not create ordinary civil or criminal jurisdiction.

ASCII MASTER FLOW – PANEL 6/12: Investigation support and procedural fairness

SECTIONS 11 AND 14

Central Government makes specified staff available to NHRC.

Commission may use Central/State agency or officers with government consent.

Agency works under Commission direction for the assigned investigation and reports back.

SECTION 16

Give a reasonable opportunity of hearing where conduct or reputation may be prejudicially affected.

LIMIT

government-linked staff can support capacity,

but does not equal an independent permanent investigation cadre.

ASCII MASTER FLOW – PANEL 7/12: Inquiry outputs, reporting and the one-year bar

ENTRY

complaint or suo motu material -> jurisdiction screen -> inquiry or investigation.

SECTION 36

no parallel inquiry where another named commission is seized.

Section 36(2): no inquiry after one year from the alleged violative act.

SECTION 18 OUTPUTS

recommend compensation or damages

| recommend prosecution or other action

| approach Supreme Court or High Court

| recommend immediate interim relief.

FOLLOW-UP

government comments/action report ordinarily within one month

-> Commission publishes report, recommendation and response.

LEGAL EFFECT

recommendation carries public and institutional weight but is not a self-executing decree.

TRAP

action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

ASCII MASTER FLOW – PANEL 8/12: Section 19 armed-forces procedure

NDR own action/petition -> seek Central Government report

- > either stop or recommend -> Central Government reports action within three months
- > Commission publishes report, recommendation and response.

Armed forces = naval, military, air and other armed forces of Union.
State police are not automatically within this definition.

LIMIT

section 19 replaces ordinary direct inquiry with a report-based route.
It does not create a rights-free zone.

ASCII MASTER FLOW – PANEL 9/12: Human Rights Courts and prosecution bridge

SECTIONS 30-31

State MAY, with High Court Chief Justice concurrence, specify a Court of Session for each district.

Purpose: speedy trial of offences arising from human-rights violations.

Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

BOUNDARY

Commission inquires/recommends -> police investigate offences

-> prosecutor presents case -> Sessions Court adjudicates.

Notification is enabling; do not assume automatic nationwide operation.

ASCII MASTER FLOW – PANEL 10/12: Overlap, referral and specialised commissions

NHRC

national statutory mandate subject to PHRA exclusions and transfer rules.

SHRC

inquires into matters relatable to State List and Concurrent List;
section 29 adapts functions and omits treaty study.

TRANSFER

NHRC may transfer a complaint to a competent SHRC under statutory conditions.

OVERLAP

NCSC, NCST and NCBC have constitutional safeguard mandates.
Women, child, minority and disability bodies have specialised statutory fields.

COORDINATION

common intake metadata -> reasoned referral -> no duplicate inquiry
-> joint thematic work -> preserve specialist voice.

LIMIT

an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

ASCII MASTER FLOW – PANEL 11/12: Paris Principles, accreditation and case-law controls

PARIS PRINCIPLES, 1993

broad legal mandate | pluralism | open appointment
| adequate resources | stable tenure | independent methods | accessibility.

DOMESTIC TEST

PHRA mandate and inquiry powers
versus police/deputation dependence, short terms, selection opacity and weak follow-up.

GANHRI CONTROL

March 2025 SCA recommended B downgrade.
India challenged with required Bureau support.
Public membership page continued to list India as A on the 24 August 2026 control.

SAFE LANGUAGE

current public A listing + unresolved official scrutiny.

TRAP

recommendation under challenge != completed downgrade;
A listing != proof of perfect Paris-Principles compliance.

Paramjit Kaur v. State of Punjab (1999)

Supreme Court used NHRC as an expert body assisting Article 32 jurisdiction.
This constitutional assignment is not ordinary PHRA jurisdiction.

N.C. Dhoundial v. Union of India (2003)

section 36(2) is a jurisdictional bar;
a completed violation does not become a daily continuing wrong merely through non-reparation.

EEVFAM (2016)

excessive-force allegations require lawful inquiry under Article 32 oversight;
NHRC is a valuable route but not exclusive and recommendations were not made generally binding.

SYNTHESIS

Court-assigned expertise may exceed the ordinary route,
but an autonomous statutory commission remains bound by statutory limits.

ASCII MASTER FLOW – PANEL 12/12: Limits, reforms, PYQs and qualified verdict

STRUCTURAL LIMITS

recommendatory outputs | one-year bar | armed-forces report route
| government-linked investigation support | federal and overlap boundaries.

PRACTICAL LIMITS

vacancies | staff/resources | delayed reports | uneven SHRC capacity
| weak Human Rights Court routing | limited civil-society trust.

REFORM

independent multidisciplinary investigation cadre
-> open plural appointments -> time-bound reasoned response
-> grave/concealed-violation limitation reform
-> safeguarded armed-forces fact-finding -> interoperable referrals.

PYQ ROUTES

2018 umbrella-commission debate | 2021 limitations and remedies
| 2023 body-classification support.

MAINS VERDICT

strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.